

26CHCV00939 26CHCV00939

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26CHCV00939 Hearing Date: July 7, 2026 Dept: F43

Dept. F43

Hearing Date: 07-07-26

Case # 26CHCV00939, Carranza,
Jr. v. CA Kern County, et al.

Trial Date: None set.

MOTION TO CHANGE OR
TRANSFER VENUE

MOVING PARTIES: Defendants Keith Cramer and County of Kern

RESPONDING PARTY: Plaintiff Luis Carranza, Jr.

RELIEF REQUESTED

Order transferring this matter to Kern County
Superior Court pursuant to Code of Civil Procedure sections 396, subdivision
(b) and 397, subdivision (a).

RULING: Motion is granted.

SUMMARY OF ACTION

On March 6, 2026, plaintiff Luis Carranza,
Jr. (Plaintiff) filed this fraud action in propria persona concerning issues

stemming from child support proceedings that occurred from 1997 through 2022. Plaintiff names several defendants: CA Kern County (Kern County); Kern County Child Support (KCCS); Dept. Health/Human Svc.; Samantha Garcia Frayre (Frayre); and Keith H. Cramer (Cramer). The Complaint asserts five causes of action: negligence against Frayre; negligence against Cramer; breach of contract against Cramer; "Intentional Tort" against Cramer; and "Intentional Tort" against KCCS and Cramer.

Plaintiff is self-represented.

Plaintiff alleges Cramer is a retired Kern County District Attorney who had an affair with Frayre, the mother of Plaintiff's child, and conspired with Frayre against Plaintiff. According to Plaintiff, Cramer used his position to defraud Plaintiff from his electrical union 401k by reopening and altering a 2006 Child Support Order, incarcerating Plaintiff, garnishing Plaintiff's wages, and suspending Plaintiff's driver's license. Plaintiff also claims he faced criminal charges for contempt of child support from 2011 through March 2022.

On May 22, 2026, defendants Cramer and Kern County filed a demurrer to the Complaint. The court sustained the demurrer without leave to amend as to defendants Kern County, KCCS, and Kern County's Dept. Health/Human Svcs. (6/18/26 Minute Order.) The court sustained the demurrer as to defendant Cramer on the Second, Fourth, and Fifth causes of action without leave to amend and sustained in part and overruled in part as to the Third Cause of Action.

On May 26, 2026, defendants Cramer and Kern County filed the instant motion for an order to transfer this matter to the Superior Court of California in Kern County. Plaintiff filed an opposition on June 18, 2026. No reply was filed.

ANALYSIS

A. Plaintiff's First Amended Complaint

On June 22, 2026, the day the court issued its ruling on Cramer's and Kern County's joint demurrer, Plaintiff filed a First Amended Complaint.

A party may amend its pleading once, without leave of the court, after a demurrer or motion to strike is filed if the amended pleading is filed and served (1) before the demurrer or motion to strike is heard and (2) no later than the deadline for filing an opposition. (Code Civ. Proc., § 472, subd. (a).)

Because the First Amended Complaint was filed on June 22, 2026 (over nine court days after the opposition deadline), the First Amended Complaint is invalid and does not moot the Frayre's demurrer and motion to strike or Cramer's and Kern County's motion to change venue.

B. Changing or Transferring Venue

The court may, on motion, transfer an action to a different venue if the court designated in the complaint is not the proper court. (Code Civ. Proc., § 397, subd. (a).) If the plaintiff files an action with an improper court, the defendant may move to transfer the case on the grounds that venue was not filed in the proper court. (Code Civ. Proc., § 396b.) The court must transfer the action to the proper court if it appears that the action was filed in the wrong court. (Code Civ. Proc., § 396b, subd. (a).) Defendant's motion must be made within 30 days after service, unless extended by stipulation or court order. (Code of Civ. Proc. § 396b.)

The burden is on the moving party to establish facts justifying the transfer. (Mission Imports, Inc. v. Superior Court (1982) 31 Cal.3d 921, 928.) Absent "an affirmative showing to the contrary the presumption is that the county in which the title of the action shows that it is brought is, prima facie, the proper county for the commencement and trial of the action." (Id.; Fontaine v. Superior Court (2009) 175 Cal.App.4th 830, 836.)

Kern County was personally served with the summons and complaint on June 15, 2026 and Cramer was personally served on April 28, 2026. (6/16/26 Proof of Personal Service; 5/21/26 Proof of Personal Service.) As such, May 28, 2026 was the latest Cramer could file the instant motion with Kern County having until July 15, 2026. Thus, defendants' motion is timely.

Plaintiff alleges Los Angeles County is the proper venue

because (1) Plaintiff resides in Los Angeles, (2) the subject child resided in Los Angeles from age 14 through 17, (3) the complaint does not concern KCCS as the Agency to collect child support, and (4) the Complaint seeks damages incurred since the Kern County child support order was terminated in 2006.

1. Los

Angeles County is not a proper venue for this action pursuant to Code of Civil Procedure Section 395.

“Venue is determined based on the complaint on file at the time the motion to change venue is made.”² (Dow AgroSciences, LLC v. Superior Court (2017) 16 Cal.App.5th 1067, 1076, citations omitted.) Generally, “the superior court in the county where the defendants or some of them reside at the commencement of the action is the proper court for the trial of the action.” (Code Civ. Proc., § 395, subd. (a).)

“If the action is for injury to person or personal property or for death from wrongful act or negligence, the superior court in either the county where the injury occurs or the injury causing death occurs or the county where the defendants, or some of them reside at the commencement of the action, is a proper court for the trial of the action.” (Code Civ. Proc., § 395, subd. (a).)

In actions for breach of a contract to perform an obligation in a particular county, the proper venue is the county (1) where the contract was performed—the place where contract was made or a different place as specified in the written contract; (2) where the contract was entered into—where the acceptance occurred; and (3) where the defendant or any defendant resides at the commencement of the breach of contract action. (Code Civ. Proc., § 395, subd. (a); Wilson v. Scannavino (1958) 159 Cal.App.2d 369, 370-371; Caffrey v. Tilton (1952) 38 Cal.2d 371, 373-374.)

Because Plaintiff seeks personal economic relief and punitive damages, this is a transitory action. (Brown v. Superior Court (1984) 37 Cal.3d 477, 482.) In “transitory” actions, venue is proper in “the county where the defendants or some of them reside at the commencement of the action.” (Code Civ. Proc., § 395, subd. (a); Brown, supra, 37 Cal.3d at p. 483.) If a corporation is joined as a co-defendant

with individual defendants, venue is proper either in the county where the individual resides or at the corporation's principal place of business. (Hale v. Bohannon (1952) 38 Cal.2d 458, 472.) For venue purposes, "residence" means "domicile" or "principal place of business" for a corporation. (Enter v. Crutcher (1958) 159 Cal.App.2d Supp. 84, 844-845.)

This action is based on Defendants' alleged misconduct and breach of a contract (a child support order), all which supposedly occurred in Bakersfield, CA and Chatsworth, CA. (Compl. at pp. 32, 34.) Plaintiff alleges the child support order was terminated in Kern County in 2006, but that Cramer and Frayre conspired to continue receiving child support payments by creating fraudulent orders and applications for spousal support, which resulted in Plaintiff's wages being garnished, his tax refunds being withheld, his arrest in Chatsworth, CA, garnishment of Plaintiff's Electrician's Union QDRO while he was in jail, and illegal contempt warrants. (Compl. at pp. 3-5.) Plaintiff alleges in November of 2011 he was arrested in Chatsworth, CA for a warrant for child support contempt and subsequently served a six-month jail sentence recommended by defendant Cramer. (Compl. at p. 35.) Plaintiff alleges the fraudulent orders were issued in Bakersfield, CA. (Compl. at pp. 31-32, 34.) Although Plaintiff alleges he suffered injuries in Los Angeles County, the Complaint's allegations indicate the misconduct occurred in Kern County. (Compl. at pp. 25, 27, 29, 35.)

The Complaint fails to allege where defendants Cramer and Frayre reside and does not address clearly address how Kern County's presence in this matter affects venue. Cramer presents a supporting declaration in which he claims he currently resides in Kern County and was residing there when the Complaint was filed. (Declaration of Keith Cramer ¶ 2.) Cramer's attorney, Bryn A. Allard, asserts Kern County Department of Child Support Services does not have a current employee named Samantha Garcia Frayre and never had an employee by that name. (Declaration of Bryn A. Allard ¶ 3.)

Kern County also resides within Kern County.

Therefore, based on where the alleged misconduct occurred

and on Cramer's and Kern County's domicile when the Complaint was filed, Kern County was the proper venue for the intentional tort and breach of contract causes of action when the Complaint was filed.

Los Angeles is not a proper venue for this action.

In his opposition, Plaintiff confusingly states Kern County holds no contract to venue. (6/18/26 Opposition at p. 2:18.) Plaintiff seems to suggest that venue should be based off where the complaint for the initial child support order was opened: 1993 in Sylmar, CA. Furthermore, the February 6, 2006, child support order ordered the child to remain in Plaintiff's custody and the child attended school in Sylmar, CA from 2011 through 2014. However, the Complaint states the Honorable Ralph McKnight was a judge of the KCCSS and that Judge McKnight terminated the order. (Compl. ¶ 32.) If the underlying order Cramer allegedly breached and manipulated was created and terminated in Kern County and Plaintiff's damages stem from violation of the terminating order and subsequent misconduct that occurred in Kern County, it is unclear how Kern County is a proper venue in this matter.

Therefore, the court finds the County of Kern is the proper venue for this matter and grants defendants Kern County's and Cramer's motion to transfer venue.

CONCLUSION and ORDER

Motion to transfer venue to the Superior Court of Kern County is granted.

All other dates in this matter are advanced and vacated.

Defendants Keith Cramer and County of Kern to give notice.